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U.S. Department of State Diplomacy in Action

Cameroon

Country Reports on Human Rights Practices
Bureau of Democracy, Human Rights, and Labor
2003
February 25, 2004

Cameroon is a republic dominated by a strong presidency. Despite the country's multiparty system of government, the Cameroon People's Democratic Movement (CPDM) has remained in power since the early years of independence. In 1997, CPDM leader Paul Biya won re-election as President in a vote boycotted by the three main opposition parties. Marred by a wide range of procedural flaws, the election was generally considered by observers not to be free and fair. The 2002 legislative and municipal elections, which were dominated by the CPDM, largely reflected the will of the people; however, there were widespread irregularities. The President retains the power to control legislation or to rule by decree and has used his legislative control to change the Constitution and extend the term lengths of the presidency. The Constitution provides for an independent judiciary; however, the judiciary was subject to significant executive influence and suffered from corruption and inefficiency.

The national police (DGSN), the National Intelligence Service (DGRE), the Gendarmerie, the Ministry of Territorial Administration, Military Security, the army, the civilian Minister of Defense, the civilian head of police, and, to a lesser extent, the Presidential Guard are responsible for internal security; the DGSN and Gendarmerie have primary responsibility for law enforcement. The Ministry of Defense, including the Gendarmerie, DGSN, and DRGE, are under an office of the Presidency, resulting in strong presidential control of internal security forces. Although civilian authorities maintained effective control of the security forces, there were frequent instances in which elements of the security forces acted independently of government authority. Members of the security forces continued to commit numerous serious human rights abuses.

The majority of the population of 15.5 million resided in rural areas; agriculture accounted for 24 percent of gross domestic product. Gross national product growth has averaged 4 to 5 percent annually with less than 3 percent inflation. However, a rather large parastatal sector, excessive public-sector employment, and the Government's inability to deregulate the economy inhibited private investment and further economic recovery. Widespread corruption within the business sector and the Government also impeded growth. Members of the Beti ethnic group, including the Bulu subgroup, figured prominently in the Government, civil service, and the management of state-owned businesses.

The Government's human rights record remained poor; although there were some improvements in a few areas, serious problems remained. Citizens' ability to change their government remained limited. Security forces committed numerous unlawful killings and were responsible for torture, beatings, and other abuses of persons, particularly detainees and prisoners. Unlike in previous years, security forces were not responsible for disappearances. Impunity remained a problem. Prison conditions remained harsh and life threatening. Security forces continued to arrest and detain arbitrarily various opposition politicians, local human rights monitors, and other citizens, often holding them for prolonged periods without charges or trials, and, at times, incommunicado. The Government regularly infringed on citizens' privacy. The Government continued to impose limits on freedom of speech and press and harassed and threatened journalists. The Government restricted freedom of assembly and association. Security forces limited freedom of movement. Violence and discrimination against women remained serious problems. Discrimination against indigenous Pygmies continued. Societal discrimination based on religion and against ethnic minorities continued. The Government continued to infringe on worker rights and restricted the activities of independent labor organizations. Child labor remained a serious problem. There were reported incidents of slavery and forced labor, including forced child labor. There were reports of trafficking in persons, primarily children, for the purposes of forced labor.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no confirmed reports of politically motivated killings; however, the security forces continued to use excessive, lethal force against private citizens and in some instances committed unlawful killings.

There continued to be reports that security forces in the remote North and Far North Provinces committed unlawful killings; however, the number of reported incidents has declined over the past 2 years. During the year, the security situation in the Anglophone provinces appeared to have improved; however, there were occasional unsubstantiated reports that security forces summarily executed suspected criminals. Local human rights groups noted that local authorities, including the special anti-gang units, paid more attention to due process than in previous years.

Prisoners died in custody during the year, due to abuse by security forces, harsh prison conditions, and inadequate medical treatment (see Section 1.c.). In late July, alleged thief Emmanuel Banye died in the custody of Kumbo police in the North West Province. Banye's mother and local human rights organizations claimed Banye's death resulted from police torture (see Section 1.c.). By year's end, there was no investigation, and no action had been taken against the officers responsible for his death.

Police used excessive force during the year. For example, on July 9, a policeman in Douala hit Yeyena Ayouba, a motorcycle taxi driver who was attempting to flee a roadside checkpoint. Ayouba died instantly. Taxi drivers in the area, who began demonstrating in protest, attacked the policeman, badly injuring him. Nearby police officers fired shots at the crowd, killing Charles Awome, a 23-year-old security agent; Jacobs Funwang; Yanoussa Abdoulaye, an 18-year-old restaurant employee; and Harouna Hamsa, a 27-year-old nightwatchman. An investigation was ongoing at year's end, but no action had been taken against the officers responsible for the deaths.

On July 11, the anti-gang police unit of Kumba shot and killed university student David Nesoe as he tried to escape during a police search for suspects in the 2002 killing of a pregnant woman. By year's end, no action had been taken in the case.

During the year, the Government investigated and prosecuted a few cases of security personnel accused of violating the law. For example, on February 24, the Yaounde Military Tribunal sentenced Barthélemy Angandi to a 25-year prison term for the 2001 death of Eloi Sanda Aba and ordered that \$90,000 (50 million CFA francs) be paid to the victim's family. By year's end, no money had been paid, and an appeal of the sentence was pending.

On August 26, the Yaounde High Instance Court sentenced three Special Operation Group officers to 5 years in prison in the 2000 death of Edouard Lewat; a fourth officer received a 3-month prison sentence. The Court ordered the Government to pay \$9,200 (5,500,000 CFA francs) in damages to Lewat's family.

There were no new developments in the 2002 deaths of Barthélemy Kengne, Aime Martial Mbong, or Southern Cameroons National Council (SCNC) activist Shiynyuy Georges, all of whom died in police custody, allegedly as a result of injuries inflicted by torture.

There were no new developments in the following 2002 killings by security forces: The January death of Isidore Usabo and the February death of Pierre Kewe.

There were no new developments in the 2001 cases of killings by security forces.

The Operational Command, which was disbanded by the Government in 2001, had functioned outside the authority of other security forces and summarily executed and killed hundreds of persons. No action was taken against members of the Operational Command who committed abuses.

On August 3, three unknown assailants shot and killed Juvenile Mbanzamihiho, a Rwandan Hutu opposition figure and alleged former official of Rwanda's National Revolution and Development Movement living in exile in the country since 1996. There were reports that Rwandan citizens killed Mbanzamihiho as a result of Rwandan political divisions; however, other reports suggested that the killing was criminally motivated. An investigation was underway at year's end.

Although to a lesser extent than in previous years, mob violence and summary justice against those suspected of theft and the practice of witchcraft reportedly continued to result in deaths and serious injuries. For example, on the night of February 21, an angry mob beat to death a thief in the Douala neighborhood of Bonanjo, across the street from the neighborhood police station. On February 24, a crowd in Bonanjo beat and killed a suspected bandit. On the night of July 16, an angry mob beat to death Olivier Kassi, who was suspected of banditry and belonged to a gang that terrorized the inhabitants of the Douala neighborhood of Mboppi. Although gendarmes eventually extricated Kassi from the crowd, he died shortly after arrival at the Gendarmerie.

b. Disappearance

There were no reports of politically motivated disappearances.

Unlike in the previous year, there were no reports of disappearances of persons in the custody of security forces. Some prior disappearances may be attributed to summary executions by security forces either in Douala or the northern regions (see Section 1.a.); in these instances, bodies rarely were found, but the suspects were presumed dead.

There were no new developments in the following cases: The March 2002 disappearance of nine youths detained in the Bafoussam Gendarmerie brigade; the appeal of the acquittal of six army officers charged with the execution of nine youths in Bépanda; and the January 2001 kidnapping of Hortense Toukam.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, there were credible reports that security forces continued to torture, beat, and otherwise abuse prisoners and detainees. In the majority of cases of torture or abuse, the Government rarely investigated or punished any of the officials involved. There were reports that security forces detained persons at specific sites where they tortured and beat detainees (see Sections 1.a. and 1.d.). Security forces also reportedly subjected women, children, and elderly persons to abuse. Numerous international human rights organizations and some prison personnel reported that torture was widespread; however, most reports did not identify the victim because of fear of government retaliation against either the victim or the victim's family. Most victims did not report torture for fear of government reprisal, or because of ignorance and lack of confidence.

In New Bell and other non-maximum security penal detention centers, prison guards inflicted beatings, and prisoners were reportedly chained or at times flogged in their cells. Authorities often administered beatings in temporary holding cells within a police or gendarme facility. Two forms of physical abuse commonly reported by male detainees were the "bastonnade," where authorities beat the victim on the soles of the feet, and the "balancoire," during which authorities hung the victim from a rod with his hands tied behind his back and beat him, often on the genitals. There were reports that some nonviolent political activists have experienced this abuse during brief detentions that followed participation in opposition party activities.

Security forces continued to subject prisoners and detainees to degrading treatment, including stripping, confinement in severely overcrowded cells, and denial of access to toilets or other sanitation facilities. Police and gendarmes often beat detainees to extract confessions or information on alleged criminals. Pretrial detainees were sometimes required, under threat of abuse, to pay "cell fees," a bribe paid to prison guards to prevent further abuse.

In April 2002, Bamenda police arrested Ousman Haman, a member of the M'Bororo ethnic group in the North West Province, after Haman and three other youths raided the ranch of a prominent businessman and member of the ruling party in part of a 17-year land feud (see Section 5). According to Amnesty International, gendarmes reportedly beat the soles of his feet 150 times using a cane and flogged him while they forced him to jump on sand. In 2002, Haman and the other three youths were sentenced to 10 years' imprisonment; at year's end, they were in prison awaiting a ruling on an appeal filed during the year.

One death reportedly resulted from police torture (see Section 1.a.).

Security forces beat and harassed journalists during the year (see Section 2.a.).

On January 19, after an altercation between police officer Jean Yougnou and Douala taxi driver Jules Temeze Nsangou, Yougnou and four others broke into Temeze's house and assaulted him. When Temeze attempted to resist the assault, Yougnou shot him in the shoulder. Temeze filed a complaint with the Douala Provincial Judicial Police office, and an investigation was ongoing at year's end.

On August 11, a Capital Yaounde Mobile Intervention Unit (GMI) police officer shot Desire Mbeng in the leg as police officers attempted to arrest fleeing non-registered street vendors. Mbeng, a bystander, was caught in the crossfire. Police officers did not attempt to assist Mbeng. There was no action taken against the officer and no reports of an investigation by year's end.

There were no further developments in the following 2002 cases of abuse by security forces: The March beating of Narcisse Kouokam; the April beating of men and women in Noun Division, West Province; and the June arrest and severe torture of Jean Rene Ndouma.

There were no new developments in the 2001 cases of torture and cruel, inhuman, or degrading treatment by security forces.

Some illegal immigrants were subjected to harsh treatment and imprisonment. Communities of Nigerians and Chadians often were the targets of police and gendarme harassment. During raids, members of the security forces often extorted money from those who did not have regular residence permits or those who did not have valid receipts for store merchandise.

Prison conditions remained harsh and life threatening. Prisons were seriously overcrowded, unsanitary, and inadequate, especially outside major urban areas. Due to a lack of funds, serious deficiencies in food, health care, and sanitation were common in almost all prisons, including "private prisons" in the north operated by traditional rulers. Prisoners were kept in dilapidated colonial-era prisons, where the number of detainees was four to five times the intended capacity. To relieve the worst of the overcrowding, prisoners were being transferred to less crowded prisons. Health and medical care were almost nonexistent, and prisoners' families were expected to provide food for their relatives in prison. Douala's New Bell Prison contained 7 water taps for a reported 3,500 prisoners, contributing to poor hygiene, illness, and death. Prison officials regularly tortured, beat, and otherwise abused prisoners with impunity. Several prisoners died due to harsh prison conditions and inadequate medical treatment.

Corruption among prison personnel was widespread. Prisoners sometimes could bribe wardens for special favors or treatment, including temporary freedom.

In September 2002, the U.N. Special Rapporteur on Prisons and the Conditions of Detention in Africa, Vera Mlangazuwa Chirwa, visited a sample of prisons in the country and personally interviewed 150 detainees. In her assessment of the visit, the Rapporteur said that overcrowding, poor nutrition, and lack of adequate health care were principal problems in the prisons; however, she noted that there was a productive prisoner work program.

Overcrowding was exacerbated by the large number of long pretrial detentions and the practice of "Friday arrests" (see Section 1.d.). In June, a penitentiary administration official estimated that 13,000 of the 20,000 inmates in the country's prisons were pretrial detainees.

There were few detention centers for women, who routinely were held in prison complexes with men, occasionally in the same cells. Mothers often were incarcerated with their children or babies. The law specifies that, after an investigation has concluded, juveniles should not be detained without trial for longer than 3 months; however, in practice, the Government detained juveniles for longer periods of time. Juvenile prisoners often were incarcerated with adults, occasionally in the same cells or wards. There were credible reports that adult inmates sexually abused juvenile prisoners. Persons awaiting trial routinely were held in cells with convicted criminals. Some high-profile prisoners were separated from other prisoners and enjoyed relatively lenient treatment.

In recent years, there have been reports that some prisoners remained in prison after completing their sentences or having been released under a court ruling. For example, 58-year-old prisoner Pierre Owono Mvondo was forgotten in prison. After having served 13 extra years in jail, he was released in August 2002 but had not been awarded compensating damages by year's end.

In the north, the Government permitted traditional Lamibe (chiefs) to detain persons outside the government penitentiary system, in effect creating private prisons. Private prisons within the palaces of traditional chiefs Rey Bouba, Gashiga, Bibemi, and Tcheboa had a reputation for serious abuse.

The Government has granted international humanitarian organizations access to prisoners. Both the local Red Cross and the National Commission on Human Rights and Freedoms (NCHRF) made infrequent, unannounced prison visits during the year. The International Committee of the Red Cross (ICRC) continued to visit prisons. Although the ICRC does not release its findings publicly, the Government generally complied with its agreement with the ICRC to allow visits.

d. Arbitrary Arrest, Detention, or Exile

The law prohibits arbitrary arrest and detention and requires an arrest warrant except when a person is caught in the act of committing a crime; however, security forces continued to arrest and detain citizens arbitrarily.

The DGSN includes the public security force, judicial police, territorial security forces, and frontier police. In rural areas, where there is little or no police presence, the primary law enforcement body is the Gendarmerie. Police officers and members of the Gendarmerie were widely viewed as corrupt and frequently arbitrarily arrested and detained citizens. Police demanded bribes at checkpoints, and influential citizens reportedly paid police to make arrests in personal disputes. Insufficient funding and inadequate training contributed to a lack of professionalism in the DGSN.

Police legally may detain a person in connection with a common crime for up to 24 hours and may renew the detention three times before bringing charges. The law provides for the right to judicial review of the legality of detention only in the two Anglophone provinces. Otherwise, the French legal tradition applies, precluding judicial authorities from acting on a case until the administrative authority that ordered the detention turns the case over to the prosecutor. After a magistrate has issued a warrant to bring the case to trial, he may hold the detainee in administrative or pretrial detention indefinitely, pending court action. Such detention often was prolonged, due to the understaffed and mismanaged court system. The law permits detention without charge by administrative authorities such as governors and senior divisional officers for renewable periods of 15 days ostensibly to combat banditry and maintain public order. Persons taken into detention frequently were denied access to both legal counsel and family members. The law permits release on bail only in the Anglophone provinces; however, in practice, bail was granted infrequently.

Police and gendarmes often arrested persons on spurious charges on Fridays at mid-day or in the afternoon. While the law in the Anglophone provinces provides for a judicial review of an arrest within 24 hours, the courts did not convene sessions on the weekend, so the detainee remained in detention until at least Monday. Police and gendarmes accepted bribes to make such "Friday arrests" from persons who had private grievances. There were no known cases of policemen or gendarmes that were sanctioned or punished for this practice.

The law also stipulates that detainees must be brought promptly before a magistrate; however, arbitrary prolonged detention remained a serious problem, and sometimes persons were held incommunicado for months or even years. For example, Souley Bobo, arrested in 1992 on murder charges, has never appeared before a prosecutor. Michel Sighanou, a juvenile who was transferred from the Yabassi prison in 1996, has been awaiting trial for more than 7 years. Some persons were detained for several months simply because they were unable to present identification to authorities.

Security forces and government authorities continued to arrest and arbitrarily detain various opposition politicians, local human rights monitors, journalists, union leaders, and other critics of the Government, often holding them for prolonged periods without charges or trials and, at times, incommunicado (see Sections 2.a., 4, and 6.a.). Police also arrested persons during unauthorized demonstrations (see Section 2.b.).

On May 17, the Sub-Prefect of the South West provincial city of Tiko ordered the arrest and detention of activists of the separatist organization Southern Cameroon National Council (SCNC), including Emmanuel Fotso, Yakubu Kitsing, Thomas Sama, Marcel Oben, Cecilia Ngwe Che, Henry Randan, James Shey, Anthony Larry, and Augustine Shyintum. The activists, who had been attending the funeral of former SCNC Chairman Martin Nkeka Luma, were released without charge after several days (see Section 3).

Police frequently arrested persons without identification during sweeps (see Section 1.f.).

In the following 2002 cases, all those implicated were released and awaiting trial: The January detention of opposition political activist Mboua Massok; the March Operation Harmattan detention of 2,792 persons, none of whom had been charged by year's end; and the September arrest of Albert Mukong and 19 other SCNC activists (see Section 3).

In April, the 50 demonstrators and 3 men from Jakiri arrested in 2001 following SCNC demonstrations were released; they were awaiting trial at year's end.

The law prohibits forced exile, and the Government did not use it; however, some human rights monitors or political opponents who considered themselves threatened by the Government left the country voluntarily and declared themselves to be in political exile.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary; however, the judiciary remained highly subject to executive influence. Corruption and inefficiency remained serious problems. The court system was subordinate to the Ministry of Justice, which was part of the Presidency. The Constitution specifies that the President is the guarantor of the legal system's independence. He also appoints all judges with the advice of the Supreme Council of the Magistrature. Some politically sensitive cases were never heard by the courts. However, the judiciary has shown some modest signs of growing independence. For example, following the 2002 municipal elections, the courts declared invalid the votes in certain areas and required a second round of voting. During the year, the courts also found the Government liable for damages in a few human rights cases. The court system includes the Supreme Court, a Court of Appeals in each of the 10 provinces, and courts of first instance in each of the country's 58 divisions.

Military tribunals may exercise jurisdiction over civilians when the President declares martial law and in cases involving civil unrest or organized armed violence. Military tribunals also have jurisdiction over gang crimes, banditry, and highway robbery. The Government interpreted these guidelines quite broadly and sometimes used military courts to try matters concerning dissident groups and political opponents. Military trials often were subject to irregularities and political influence.

The legal system includes both national law and customary law, and many criminal and civil cases can be tried using either one; however, criminal cases are generally tried in statutory courts, and customary court convictions involving witchcraft automatically are transferred to the statutory courts, which act as the court of first instance. Customary

law, which is used most frequently in rural areas, is based upon the traditions of the ethnic group predominant in the region and is adjudicated by traditional authorities of that group. Customary law is deemed valid only when it is not "repugnant to natural justice, equity, and good conscience." However, many citizens in rural areas remained unaware of their rights under civil law and were taught that customary laws form the rules by which they must abide. Customary law ostensibly provides for equal rights and status; however, men may limit women's right to inheritance and employment, and some traditional legal systems classify wives as the legal property of their husbands (see Section 5). Customary courts served as a primary means for settling civil disputes in rural areas, primarily in family-related civil cases, such as in matters of succession, inheritance, and child custody. Divorce cases can be brought to customary courts only if the marriage has not been sanctioned by the Government through an official license. Customary courts may exercise jurisdiction in a civil case only with the consent of both parties. Either party has the right to have the case heard by a statutory court and to appeal an adverse decision in a customary court to the statutory courts. For example, a citizen successfully appealed a land dispute case during the year, and was able to claim damages from the area chief who had taken his land. Most traditional courts also permitted appeal of their decisions to traditional authorities of higher rank.

The legal structure is influenced strongly by the French legal system, although in the two Anglophone provinces certain aspects of the Anglo-Saxon tradition apply. In the past, this mixed legal tradition has led to conflicting court action in cases handled in both Francophone and Anglophone jurisdictions. In June, the International Bar Association began to assess ways to harmonize the criminal legal system.

The Constitution provides for a fair public hearing in which the defendant is presumed innocent. Defendants generally were allowed to question witnesses and to present witnesses and evidence on their own behalf. Because appointed attorneys received little compensation, the quality of legal representation for indigent clients often was poor. The Bar Association and some voluntary organizations, such as the Cameroonian Association of Female Jurists, offered free assistance in some cases. The Project for the Improvement of Conditions of Detention was initiated in 2002 to engage lawyers to work on prison cases. Trials normally were public, except in cases with political overtones and cases judged disruptive to social peace.

Political bias often stopped trials or resulted in an extremely long process, with extended court recesses. Powerful political or business interests enjoyed virtual immunity from prosecution; some politically sensitive cases were settled with a payoff. However, in November, a court convicted former Minister of Posts and Telecommunications Mounchipou Seidou and 22 co-conspirators, all of whom were arrested in 1999 on corruption charges.

The Government held political prisoners, including Anglophones; however, there was no reliable estimate of the number being held at year's end. The Government permitted regular access to international humanitarian organizations; during the year, the International Federation of Human Rights visited political prisoners in several prisons.

Titus Edzoa, former Minister of Health and long-time presidential aide who opposed President Biya in the 1997 election, remained incarcerated with Michel Thierry Atangana, his campaign manager, at the maximum-security Gendarmerie headquarters, with very limited access to visitors; Edzoa and Atangana were arrested prior to the 1997 election.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution prohibits such actions; however, these rights were subject to the "higher interests of the State," and there were numerous, credible reports that police and gendarmes harassed citizens, conducted searches without warrants, and opened or seized mail. The Government continued to keep some opposition activists and dissidents under surveillance. Police sometimes punished family members and neighbors of criminal suspects.

The law permits a police officer to enter a private home during daylight hours without a warrant if he is pursuing an inquiry and has reason to suspect that a crime has been committed. The officer must have a warrant to make such a search after dark; however, a police officer may enter a private home at any time in pursuit of a criminal observed committing a crime.

An administrative authority may authorize police to conduct neighborhood sweeps, at times involving forced entry into homes, in search of suspected criminals or stolen or illegal goods without individual warrants. Although there were fewer sweeps during the year than in the previous year, these sweeps continued to occur in Yaounde and Douala. Typically, security forces seal off a neighborhood, systematically search homes, arrest persons arbitrarily, and seize suspicious or illegal articles. There were credible reports that security forces used such sweeps as a pretext to loot homes and arbitrarily arrest persons for minor offenses, such as not possessing identity cards (see Section 1.c.). For example, on April 3, the police sealed off Yaounde neighborhoods of Ntaba, Eig-Edzoa, and Etoa-Meki, searched each home, and arrested several individuals who were unable to present proper identification.

Purportedly in efforts to combat highwaymen, the now-suspended Operational Command was known to use informants to identify and accuse persons of taking part in highway robbery (see Section 1.a.). Standards of proof for such accusations were nonexistent. Accusations occasionally were used to pursue private grievances, and informants repeatedly extorted money from persons by threatening to accuse them of being bandits. These informants often were former criminals or prison guards, and reportedly were used to target criminals who then were summarily executed (see Section 1.a.). In 2002, Colonel Pom and his special anti-gang unit committed similar abuses; however, that unit was disbanded and replaced by the Light Intervention Battalion, which has not been accused of such abuses.

At year's end, no compensation had been provided for houses that the Government destroyed along several of Yaounde's main roads in anticipation of the France-Africa Summit in January 2001. The Government also reportedly relocated Yaounde squatters, many of whom had mental disabilities, to the neighboring town of Mbalmayo for the duration of the summit. The squatters returned to Yaounde following the summit but were not allowed to reoccupy the site from which they were removed. No legal action had been taken in the case by year's end.

There have been accusations, particularly in the North and Far North Provinces, of traditional chiefs arbitrarily evicting persons from their land. There also were credible reports that security forces forced Baka out of their homes (see Section 5).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government continued to limit these rights in practice. The Government sometimes invoked strong libel laws to silence criticism of the Government and officials. Journalists, particularly broadcast journalists, often practiced self-censorship as a result of significant government intimidation and harassment.

The Government published one of the country's few daily newspapers, the Cameroon Tribune, which did not report extensively on activities or political parties critical of the Government, overtly criticize the ruling party, or portray government programs in an unfavorable light.

While approximately 60 privately owned newspapers were published, only an estimated 20 were published on a regular basis, including Mutations, the country's only privately owned daily newspaper. Newspapers were distributed primarily in Yaounde and Douala, and most continued to criticize the Government and to report on controversial issues, including corruption, human rights abuses, and economic policies. However, the print media were subject to considerable government restrictions, including inhibitive libel laws.

On March 11, the Ministry of Territorial Administration banned the publication, distribution, and sale of La Tribune de l'Est, a private newspaper highly critical of the Government; the ban remained in effect at year's end.

Despite the large number of private newspapers in the country, the influence of print media was minimal. Distribution was problematic outside of Yaounde and Douala, and prices of independent newspapers were high due largely to high government taxes on newsprint. In addition, Government control of newspaper warehouses allowed the seizure of controversial editions of certain newspapers prior to distribution. Consequently, independent print media reached only a tiny percentage of the population, notably the urban elite.

The state-owned CRTV broadcast on both television and radio and was the only officially recognized and fully licensed broadcaster in the country. The Government levied taxes on all registered taxpaying citizens in order to finance CRTV programming, which allowed CRTV a distinct advantage over independent broadcasters.

The Government tightly controlled the broadcast media. With approximately 2 million radios in the country, radio remained the most important medium reaching most citizens. There were approximately 20 privately owned radio stations operating in the country.

Non-profit rural radio stations were required to submit an application to broadcast but were exempt from paying licensing fees. Potential commercial radio and television broadcasters must submit a licensing application and pay a fee when the application is approved. The annual licensing fees potentially were prohibitive. The Ministry of Communication has received more than 100 applications from potential broadcasters; however, few if any have been processed. Radio and television stations were forced to operate illegally because the Communications Ministry has not responded to requests for licenses since broadcasting was opened to the private sector. A small number of radio stations broadcasting illegally, including Radio Soleil, did not apply for licenses, claiming the fees were exorbitant. The Government continued to allow most of these stations to broadcast. However, there were unconfirmed reports that several radio and television stations that did not submit applications were closed down at year's end.

There were several low-power, rural community radio stations funded primarily by foreign countries with extremely limited broadcast range. These stations, which broadcast educational programs to small audiences, were not allowed to discuss politics. The law permits broadcasting of foreign news services but requires the foreigners to partner with a national station. The British Broadcasting Company (BBC) and Radio France International (RFI) broadcast in partnership with state-owned CRTV. During the year, the Government continued to allow the reception of international cable and satellite television broadcasts.

Television was less pervasive but more influential than print media. The three independent television stations largely avoided criticizing the Government and generally relayed government information to the public.

Like the Cameroon Tribune, CRTV provided broad reporting of CPDM activities, while giving relatively little attention to the political opposition. CRTV management repeatedly has instructed CRTV staff to ensure that government views prevailed at all times. CRTV television and radio programming included a weekly program, Direct Expression, which ostensibly fulfilled the Government's legal obligation to provide an opportunity for all political parties represented in the National Assembly to present their views. However, during the program, CRTV continued to restrict the freedom of speech of the opposition party, the Social Democratic Front (SDF), by occasionally censoring and significantly shortening proposed SDF programming.

In September, the Minister of Communications authorized three private radio and four private TV stations, including Canal 2 and RTA, to transmit without being officially licensed; however, the Government continued to control these stations. For example, the stations were given a specific theme for coverage, and the Government monitored thematic content to ensure compliance with the approved format.

Security forces continued to restrict press freedom by arresting, detaining, physically abusing, threatening, and otherwise harassing print-media journalists. The Government seized print runs of private newspapers and interfered with private newspaper distribution.

On April 13, the government printing office SOPECAM refused to publish that day's edition of the Yaounde-based opposition newspaper Mutations. Gendarmes seized the diskette containing the edition, which included articles on potential candidates in the 2004 presidential election. That night, gendarmes abused and detained for 2 hours employees Moise Moundi and Etienne Kenfack. Gendarmes also arrested and detained for several hours the publisher of the paper, Haman Mana. The newspaper was prevented from publishing for 2 days. On April 14, 50 gendarmes surrounded the Mutations' headquarters while others searched the newspaper's offices. On April 15, Mana, editor-in-chief Alain Batongue, and editor Emmanuel Gustave Samnick were arrested, questioned about the articles, and released that evening. When officials found that the April 16 edition contained the same report, police seized copies of the newspaper as it appeared on the streets. The Government subsequently threatened to "suffocate the paper financially."

According to Reporters Without Borders (RSP), Communications Minister Jacques Fame Ndongo publicly criticized the media during the year for "interfering in government bodies" and warned broadcast media entrepreneurs that the Government would increase its efforts to collect their back taxes; however, no action was taken by year's end.

There were no new developments in the March 2002 detention and beating of Samuel Mben Mben; the April 2002 seizure of the movie Braquages; and the November 2002 beating of Nyemb Popoli, publisher and cartoonist of Le Messenger Popoli, by 12 policemen.

There were no further developments in the 2001 cases of security forces' harassment of journalists; trials were still pending at year's end.

The Government shut down numerous broadcast stations during the year. For example, on February 18, the Government of the Center Province suspended Canal 2 and RTA, two of the country's three privately owned television channels, at the request of Communications Minister Ndongo; the action followed the stations' broadcasting of several political debates that were critical of the Government. The Government subsequently closed both stations for operating illegally and broadcasting original programming when they had only been authorized to carry foreign media programs. Neither station was broadcasting at year's end.

On March 14, the Minister of Communication suspended Magic FM, the largest private radio station in Yaoundé for insulting the President, disseminating false information, and breaching the peace. The closing followed the station's criticism of the Government for mismanagement of public funds and the banning of Tribune de l'Est. On March 24, the station was allowed to resume broadcasts despite the suspension order. However, on December 6, the Government blocked the broadcasting of a 3-hour political call-in show on Magic FM after callers raised concerns about human rights in the country.

On May 23, the Douala police sealed off the premises of Freedom FM, a new FM radio station that Douala-based newspaper, Le Messager, intended to launch the following morning. According to police, the Minister of Communication ordered the cordon because Le Messenger had not submitted an application for operation. Le Messenger claimed to have submitted its application under a different name but subsequently informed the Ministry of the name change. The Minister of Communication granted the frequency that Freedom FM had applied to use to another private radio station. Station owner Pius Njawe, who previously has been jailed for criticizing President Biya, initiated legal action to recover his equipment, and the trial was ongoing at year's end.

In November, the Government temporarily closed Radio Veritas, a private radio station established by Cardinal Christian Tumi, an outspoken critic of the Government; the station resumed broadcasting in December.

In December, the Divisional Officer for Oku closed Oku Rural Radio, detained four members of the station's board of directors, and placed three other members under house arrest on charges of embezzlement and misappropriation of funds. The board members reportedly were released; however, the station remained closed at year's end.

As part of a nationwide campaign to encourage local radio stations to apply for licenses, in late December, a Ministry of Communication official issued an ultimatum that radio and television stations operating illegally would have to submit the requisite paperwork or close by December 31. Stations that submitted their applications before the deadline were allowed to continue broadcasting while their applications were under review. There were unconfirmed reports that several radio and television stations operating illegally did not submit applications and were closed down at year's end; four radio stations and one television station closed down on their own initiative before year's end.

The Government prosecuted its critics in the print media through criminal libel laws. These laws authorized the Government, at its discretion and the request of the plaintiff, to criminalize a civil libel suit or to initiate a criminal libel suit in cases of alleged libel against the President and other high government officials; such crimes are punishable by prison terms and heavy fines. Criminal penalties for speech-related offenses resulted in the practice of self-censorship by some journalists. There were no new cases of libel during the year; however, the Government continued to pursue libel cases from previous years.

In July 2002, the Yaounde Court of First Instance sentenced in absentia J. Remy Ngono, a journalist and commentator on Radio Television Siantou, to 6 months' imprisonment without parole for defamation of character; Ngono had accused a businessman of corruption. The law stipulates that journalists are to be notified and given up to 5 days to serve documents when accused of press violations; however, these provisions reportedly were not respected in Ngono's case. In January, due to pressure from the Minister of Communication, Ngono was suspended from Radio Siantou for unprofessional conduct and unwarranted criticism of the Government. On August 5, police arrested Ngono, who was subsequently released.

The Internet and e-mail were not widely available or heavily utilized; however, a few cybercafes provided Internet or e-mail access in some urban areas. There were at least six domestic Internet service providers, some of which were privately owned. The Government has not attempted to restrict or monitor these forms of communication.

Although there were no legal restrictions on academic freedom, state security informants operated on university campuses. Professors believed that participation in opposition political parties could affect adversely their professional opportunities and advancement. Free political discussion at Yaounde's universities was hindered by armed government security forces who harassed some students; however, unlike in the previous year, no students were detained.

b. Freedom of Peaceful Assembly and Association

The law provides for freedom of assembly; however, the Government restricted this right in practice. The law requires organizers of public meetings, demonstrations, or processions to notify officials in advance but does not require prior government approval of public assemblies and does not authorize the Government to suppress public assemblies that it has not approved in advance. However, officials routinely have asserted that the law implicitly authorized the Government to grant or deny permission for public assembly. Consequently, the Government often has not granted permits for assemblies organized by persons or groups critical of the Government and repeatedly used force to suppress public assemblies for which it has not issued permits.

Security forces forcibly disrupted trade unions' and opposition parties' meetings and rallies throughout the year. For example, on February 5, authorities banned a press conference that a legal opposition party, the National Alliance for Democracy and Progress (ANDP), and five former ministers from the Northern provinces intended to hold at a local hotel. Although the ANDP had completed all procedural requirements for the press conference, the Prefect of Mfoundi blocked the event, reportedly because the participants were from the north. The ANDP moved the conference to a private residence; however, gendarmes encircled the home and intimidated participants. The Prefect subsequently banned the group from holding any further meetings.

During the year, police used excessive force to disperse demonstrations, which in one case resulted in numerous deaths (see Section 1.a.).

On September 30, in the South West town of Kumba, police fired guns throughout the night to intimidate persons planning to protest on October 1, the traditional day of protest for Anglophones. Five of the protesters, who threw Molotov cocktails to protest the police presence, were arrested.

No action reportedly was taken against the members of the security forces who forcibly dispersed demonstrations in 2002 or 2001.

The law provides for freedom of association, and the Government generally respected this right in practice; however, there were some exceptions. The 2002 ban on the SCNC remained in effect. In mid-June, the Prefect of Douala's Wouri Division banned all activities of the Front of Alternative Forces, a coalition of opposition parties, NGOs, and private citizens; the Prefect charged that the group was disorderly and had not applied for legal status. The ban remained in effect at year's end.

The conditions for government recognition of a political party, a prerequisite for many political activities, were not onerous. More than 180 political parties operated legally, together with a large and growing number of civic associations.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respected this right in practice; however, there were a few exceptions.

Religious groups must be approved and registered with the Ministry of Territorial Administration to function legally; there were no reports that the Government refused to register any group. The approval process usually takes several years, due primarily to administrative delays. The Government did not register traditional religious groups on the grounds that the practice of traditional religion was a private concern observed by members of a particular ethnic or kinship group or the residents of a particular locality.

Government officials disapproved of and questioned criticism of the Government by religious institutions and leaders; however, there were no reports that officials used force to suppress such criticism.

Unlike in previous years, security forces did not commit abuses against the sites and personnel of religious institutions.

An April 2002 government ban of the Ma'alah, a nontraditional religious body that allegedly was involved in ritual killings, remained in effect during the year.

The practice of witchcraft is a criminal offense under the law; however, individuals generally were prosecuted for this offense only in conjunction with another offense, such as murder. Witchcraft traditionally has been a common explanation for diseases of unknown cause.

There were no new developments in the alleged March 2002 torture of 6-year-old Manuella Cynthia Selam Tiave or the July 2002 arrest of Robert Ndoumbe Elimbi.

There were no developments in the 2001 death of Father Henri Djeneke or the 2001 order to expel seven individuals accused of witchcraft.

Discrimination in the Northern provinces, especially in rural areas, by Muslims against Christians and persons who practiced traditional indigenous was strong and widespread; however, there were no confirmed reports of specific incidents of religious discrimination during the year.

For a more detailed discussion, see the 2003 International Religious Report.

d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

The law provides for these rights; however, in practice security forces routinely impeded domestic travel.

Roadblocks and checkpoints manned by security forces proliferated in cities and most highways making road travel both time-consuming and costly. Extortion of small bribes was commonplace at these checkpoints. Police frequently stopped travelers to check identification documents, vehicle registrations, and tax receipts as security and immigration control measures. During the year, security forces killed at least one person they thought was evading a checkpoint (see Section 1.a.).

There were no new developments in the April 2002 shooting of Francis Akondi Ndanle.

There were credible reports that police arrested and beat individuals who failed to carry their identification cards (see Section 1.f.).

Unlike in the previous years, there were no reports that authorities confiscated the passports of human rights activists.

The law provides for the granting of asylum and refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. In practice, the Government provided protection against refoulement and granted refugee status or asylum. The Government also provided protection to certain individuals who fell outside of the definition of the Convention or its Protocol. The Government cooperated with the office of the U.N. High Commissioner for Refugees (UNHCR) and other humanitarian organizations in assisting refugees. In June, the UNHCR Yaounde office estimated that the country provided temporary protection to approximately 70,000 refugees, the majority of whom were Chadian and Nigerian. Other refugees mainly were from Rwanda, Burundi, and the Democratic Republic of the Congo, with small numbers from Liberia, Sudan, and Ethiopia. On January 1, the UNHCR reopened its office in Yaounde in response to the inflow of 21,000 Fulanis from Nigeria in February 2002.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides that citizens have the right to change their government; however, dominance of the political process by the President and his party and electoral intimidation, manipulation, and fraud severely limited the ability of citizens to exercise this right. President Paul Biya, who has controlled the Government since 1982, was re-elected in 1997 elections that international and domestic observers widely criticized and viewed as fraudulent.

In 1996, the Government enacted a revised Constitution, which was being implemented gradually; the 1972 Constitution remained in force in areas where the 1996 revisions had not yet been implemented. The 1996 Constitution's provision extending the presidential term from 5 to 7 years and permitting President Biya to run for another term was in effect; however, the composition of the National Assembly, an elected body, still was being determined by the 1972 Constitution. Since 1991, only government bills proposed by the Presidency have been enacted by the National Assembly; bills cannot be proposed by groups that do not have a representative in the National Assembly.

The President's control over the country's administrative apparatus was extensive. The President appoints all Ministers including the Prime Minister. In August 2002, President Biya reshuffled his cabinet to bring in 18 new ministers, 16 of which were CPDM members. The President also directly appoints the governors of each of the 10 provinces. The governors, in turn, wield considerable power in the electoral process, interpreting and implementing the laws. The President also has the power to appoint important lower level members of the 58 provincial administrative structures, including the senior divisional officers, the divisional officers, and the district chiefs. The governors and senior divisional officers wield considerable authority within the areas under their jurisdiction, including the authority to ban political meetings that they deem likely to threaten public order (see Section 2.b.). They also may detain persons for renewable periods of 15 days to combat banditry and other security threats (see Section 1.d.).

The right of citizens to choose their local governments remained circumscribed. The Government has increased greatly the number of municipalities run by presidentially appointed delegates, who have authority over elected mayors. Delegate-run cities included most of the provincial capitals and some division capitals in pro-opposition provinces; however, this practice was nonexistent in the southern provinces, which tended to support the CPDM. In municipalities with elected mayors, local autonomy was limited since elected local governments relied on the central Government for most of their revenue and administrative personnel.

The June 2002 legislative and municipal elections CPDM increased the CPDM's its number of seats in the 180-member National Assembly from 116 to 149 seats. The main opposition, the Social Democratic Front, won 22 seats, down from 43 it had held previously. Municipal elections, which had been postponed in 2001, were also dominated by the CPDM. The Government maintained that the election results reflected the will of the people, and international observers noted improvements in the electoral system. However, the National Observatory of Elections, whose members were appointed by the President to supervise electoral procedure, observed the elections along with the Catholic Church and reported several election irregularities, including vote-buying, the stuffing of ballot boxes, intimidation, multiple voting, ghost polling, and discriminatory voter registration. After six opposition parties reported massive fraud and boycotted the municipal councils and the National Assembly, the Supreme Court annulled legislative election results in nine divisions, in which the CPDM had won eight seats. The Court rescheduled elections in these divisions for September 2002, when the CPDM won eight seats, and the SDF won one. The Court also annulled the results for municipal elections in 17 districts due to violence, consisting mostly of fighting between political party members and polling station or ruling party officials, looting, and intimidation in those elections that largely were won by the CPDM.

There were more than 180 registered political parties in the country; however, less than 10 were significant, and only 5 had seats in the National Assembly. The ruling CPDM held an absolute majority in the National Assembly; opposition parties included the SDF, based in the Anglophone provinces and the largest of the opposition parties, the Union for Democracy and Progress, the Cameroon Democratic Union (CDU), and the Union of Peoples of Cameroon.

In August, the SDF and CDU created the Coalition for National Reconstruction and Reconciliation. Other smaller opposition coalitions formed during the year.

There were no laws that specifically prohibit women or members of minorities from participating in government, the political process, or other areas of public life. Women held 18 of 180 seats in the National Assembly, 3 of 50 cabinet posts, and a few of the higher offices within the major political parties, including the CPDM.

Many of the key members of the Government were drawn from the President's own Beti/Bulu ethnic group, as were disproportionately large numbers of military officers and CPDM officials.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic and international human rights groups generally operated without government restriction, investigating and publishing findings on human rights cases; however, government officials repeatedly impeded the effectiveness of human rights NGOs during the year by limiting access to prisoners, refusing to share information, and threatening and using violence against personnel of human rights NGOs (see Section 1.d.). The activities of virtually all of these groups were limited by a shortage of funds and trained personnel. Observers have criticized the country's NGO laws for giving the Government the opportunity to deny authorization to operate or eliminate NGOs by decree.

Numerous domestic human rights NGOs operated in the country, including, among others, the National League for Human Rights, the Organization for Human Rights and Freedoms, the Association of Women Against Violence, and the Cameroonian Association of Female Jurists.

The Government harassed and arrested NGO members during the year. On June 16, the Maroua Prosecutor ordered the detention of Abdoulaye Math, a human rights activist and President of the Movement for the Defense of Human Rights and Liberties (MDHRL), on debt charges. Math, who was released after several days, claimed the arrest was part of the continuous harassment he had faced since creating MDHRL.

Albert Mukong, who was arrested in September 2002, was released and awaiting trial at year's end.

On January 1, the UNHCR, which ceased operations in the country in 2001, re-opened its Yaounde office (see Section 2.d.).

The government-established NCHRF, although hampered by a shortage of funds, conducted a number of investigations into human rights abuses, visited prisons, and organized several human rights seminars aimed at judicial officials, security personnel, and other government officers. On June 10 and 11, the NCHRF organized a national workshop evaluating the human rights situation in the country. Several local NGOs, government officials, and members of the diplomatic community attended. Although the Commission infrequently criticized the Government's human rights abuses publicly, its staff intervened with government officials in specific cases of human rights harassment by security forces, attempted to stop Friday arrests (see Section 1.d.), and sought to obtain medical attention for jailed suspects in specific cases. The law prohibits the NCHRF from publishing information on specific human rights cases; however, it may and does submit reports on specific alleged abuses to the authorities directly involved, along with recommendations for improving conditions or punishing violators.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution does not explicitly forbid discrimination based on race, language, or social status. The Constitution prohibits discrimination based on sex and mandates that "everyone has equal rights and obligations"; however, the Government did not enforce these provisions effectively.

Women

Domestic violence against women was common. Women's rights advocates reported that the law does not impose effective penalties against men who commit acts of domestic violence. There were no gender-specific assault laws, despite the fact that women were the predominant victims of domestic violence. Spousal abuse was not a legal ground for divorce. In cases of sexual assault, a victim's family or village often imposed direct, summary punishment on the suspected perpetrator through extralegal means, ranging from destruction of property to beating. While there were no reliable statistics on violence against women, a large number of newspaper reports indicated that the phenomenon was widespread.

Female genital mutilation (FGM) was not practiced widely. However, it continued to be practiced in isolated cases in 3 of the 10 provinces, including some areas of Far North, Eastern, and Southwest Provinces. Internal migration contributed to the spread of FGM to different parts of the country. The majority of FGM procedures were clitorectomies; however, the severest form of FGM, infibulation, was performed in the Kajifu region of the Southwest Province. FGM usually was practiced on infants and preadolescent girls. The Government has criticized the practice; however, no law prohibits FGM. The Association of Women Against Violence conducted a program in Maroua to assist female victims of FGM and their families and to educate local populations.

Despite constitutional provisions recognizing women's rights, women did not enjoy the same rights and privileges as men. Some points of civil law were prejudicial to women. The law allows a husband to oppose his wife's right to work in a separate profession if the protest is made in the interest of the household and the family; a husband also

may end his wife's commercial activity by notifying the clerk of commerce tribunal of his opposition based upon the family's interest. Partly for this reason, some employers required a husband's permission before hiring female employees.

Customary law was far more discriminatory against women, since in many regions a woman customarily was regarded as the property of her husband. Because of the importance attached to customs and traditions, laws protecting women often were not respected. In the customary law of some ethnic groups, husbands not only maintained complete control over family property, but also could divorce their wives in a traditional court without being required to provide either verifiable justification or alimony. Polygyny was permitted by law and tradition. In cases of divorce, the husband's wishes determined the custody of children over the age of 6. While a man may be convicted of adultery only if the sexual act takes place in his home, a female may be convicted without respect to venue.

Traditional law normally governed the extent to which a woman may inherit from her husband in the absence of a will, and traditions varied from group to group. In many traditional societies, custom grants greater authority and benefit to male heirs than to female heirs. Women also faced the issue of forced marriage; in some regions, girls' parents could and did give girls away in marriage without the bride's consent. Often the husband, who could be many years older than his bride, paid his wife's parents a "bride price." Since a price had been paid, the girl was considered the property of the husband. When a married man died, his widow often was unable to collect any inheritance, since she herself was considered part of the man's property. Often the widow was forced to marry one of the deceased's brothers. If she refused, she had to repay the bride price in full and leave the family compound. In the Northern provinces, some Lamibe (traditional rulers) reportedly prevented their wives and concubines from leaving the palace. The lack of a national legal code covering such family issues often left women defenseless against these male-oriented customs.

Children

The Constitution provides for a child's right to education, and schooling was mandatory through the age of 14 years. The Government took measures during the year to improve access to schools. For example, in May, the Government in conjunction with the World Bank established a committee to promote girl's education. Since parents had to pay uniform and book fees for primary school, and because tuition and other fees for secondary education remained costly, education largely was unaffordable for many children. According to statistics published on September 8 in the Cameroon Tribune, approximately 4.5 million children, or 85 percent of all children, were enrolled in school; however, the cost prevented many of those enrolled from attending. In the Far North Province, it was reported that well below 50 percent of children attended school; the majority of attendees were boys.

Though illegal, in practice girls continued to suffer from discrimination with respect to education throughout the country. The gap in school attendance was 14 percent nationally and 34 percent in the two most northern provinces. This problem, which especially was acute in rural areas, resulted in higher levels of illiteracy among women than men.

The exact degree of familial child abuse was not known; however, the problem was targeted by children's rights organizations. Newspaper reports often cited children as victims of kidnapping, mutilation, and even infanticide. There were several credible stories of mothers (usually young, unemployed, and unmarried) abandoning their newborns in streets, garbage cans, and pit toilets.

Despite the law that fixes a minimum age of 15 years for a bride, many families married young girls by the age of 12 years. Early marriage was prevalent in the Northern provinces of Adamawa and the North, but especially characteristic of the remote Far North Province where many young women faced severe health risks from pregnancies as early as 13. Authorities were becoming increasingly concerned about this situation.

FGM was performed primarily on young girls (see Section 5, Women).

There were reports of child prostitution and trafficking in children during the year (see Section 6.f.).

Child labor remained a problem (see Section 6.d.).

Persons with Disabilities

The law provides certain rights to persons with disabilities, including access to public institutions, medical treatment, and education. The Government was obliged to bear part of the educational expense of persons with disabilities, to employ them where possible, and to provide them with public assistance when necessary; however, the Government rarely honored these obligations. There were few facilities for persons with disabilities and little public assistance; lack of facilities and care for persons with mental disabilities particularly was acute. Society largely tended to treat those with disabilities as misfits, and many felt that providing assistance was the responsibility of churches or foreign NGOs. The law does not mandate special access provisions to private buildings and facilities for persons with disabilities.

Indigenous People

A population of approximately 50,000 to 100,000 Baka (Pygmies), a term that encompasses several different ethnic groups, primarily resided (and were the earliest known inhabitants) in the forested areas of the South and East provinces. While no legal discrimination exists, other groups often treated the Baka as inferior and sometimes subjected them to unfair and exploitative labor practices. Unlike in the previous year, there were no reports that logging companies and security forces forced Baka out of their homes. Baka reportedly continued to complain that the forests they inhabit were being logged without fair compensation. Some observers believe that sustained logging was destroying the Baka's unique, forest-oriented belief system, forcing them to adapt their traditional social and economic systems to a more rigid modern society similar to their Bantu neighbors. Local Baka along the proposed path of the Chad-Cameroon pipeline continued to complain that they were not compensated fairly for their land. Others alleged that they had been cheated of their compensation by persons posing as Baka representatives.

An estimated 95 percent of Baka did not have national identity cards; most Baka could not afford to provide the necessary documentation in order to obtain national identity cards, which were required to vote in national elections.

On January 30, the Foundation for the Environment and Development in Cameroon signed two separate conservation conventions to protect the Mbam-Djerem and Campo Ma'an natural parks, which are the traditional territories of Bakola and Bageli Pygmies.

National/Racial/Ethnic Minorities

The population was divided into more than 200 ethnic groups, among which there were frequent and credible allegations of discrimination. Ethnic groups commonly gave preferential treatment to fellow ethnic group members both in business and social practices.

Members of President Biya's Beti/Bulu ethnic group from southern parts of the country held key positions and disproportionately were represented in government, civil service, state-owned businesses, the security forces, the military, and the ruling CPDM party. The large size and centralized character of the public sector long has been perceived widely to favor this group.

In August, a 17-year land dispute between the M'Bororo herders of the North West province and Alhadji Baba Ahmadou Danpullo, a prominent businessman and member of the ruling party, resulted in the establishment of a special government commission of inquiry. The M'Bororo, a semi-nomadic Fulani people whose main economic activity is cattle raising, were given rights over pastoral land by the British colonial government; however, in 1986, Danpullo established a commercial ranch in Ndawara. The M'Bororo claim that over 17 years, Danpullo has forcibly displaced them, seized their land, cattle, and women; and used his money and influence with the Government to order the beating and false imprisonment of members of the M'Bororo. In April 2002, Bamenda police arrested and imprisoned four M'Bororo youths after torturing one of them severely (see Section 1.c.). Although hundreds of persons have testified before the commission of inquiry, some as recently as August, Danpullo failed to appear following a summons. The commission's investigation has been completed; however, the results were not released by year's end.

Northern areas of the country suffered from ethnic tensions between the Fulani (or Peuhl) and the Kirdi. The Kirdi remained socially, educationally, and economically disadvantaged relative to the Fulani in the three Northern provinces. Traditional Fulani rulers, called Lamibe, continued to wield great power over their subjects, often including Kirdi, sometimes subjecting them to tithing and forced labor. Isolated cases of slavery were reported, largely Fulani enslavement of Kirdi.

Natives of the North West and South West provinces have tended to support the opposition party SDF and have suffered disproportionately from human rights violations committed by the Government and its security forces. The Anglophone community has been underrepresented in the public sector. Anglophones generally believed that they had not received a fair share of public sector goods and services within their two provinces. Some residents of the Anglophone region sought greater freedom, equality of opportunity, and better government by regaining regional autonomy rather than through national political reform and have formed several quasi-political organizations in pursuit of their goals.

At least one Anglophone group, the SCNC, advocates secession from the country. During the year, security forces harassed and arrested the participants of SCNC meetings (see Section 1.d.). The Government also continued to hold some SCNC activists or suspected SCNC supporters in temporary detention without charge. The opposition SDF party, whose base of support resides in the Anglophone provinces, reiterated its commitment to pursue a nonviolent political struggle toward the restoration of a federal republic.

Members of the country's large community of Nigerian immigrants often complained of discrimination and abuse by government officials (see Section 1.c.). Government officials repeatedly have announced crackdowns on undocumented Nigerian immigrants.

Section 6 Worker Rights

a. The Right of Association

The law allows workers both to form and join trade unions; however, the Government imposed numerous restrictions. The law requires that unions register with the Government, permitting groups of at least 20 workers to organize a union by submitting a constitution, internal regulations, and non-conviction certifications for each

founding member. The law does not permit the creation of a union that includes both public and private sector workers.

The Government indicated that it remits certification within 1 month of union application; however, in practice independent unions, especially in the public sector, have found it difficult to register. In addition, the requirement for union registration contradicts the International Labor Organization (ILO) Convention 87, which states that unions have the right to exist through declaration not through government recognition or registration. Registered unions were subject to government interference. The Government chose the unions with which it would bargain; some independent unions accused the Government of creating small non-representative unions amenable to government positions and with which it could negotiate more easily. Some sections of labor law have not taken effect because the presidency had not issued implementing decrees.

There were three trade union confederations: the Confederation of Cameroonian Trade Unions (CCTU), the Union of Free Trade Unions of Cameroon (USLC), and the General Confederation of Free Workers of Cameroon (CGTLC), launched in March by Benoit Essiga, a former president of CCTU.

The law prohibits anti-union discrimination, and employers guilty of such discrimination were subject to fines up to approximately \$1,600 (1 million CFA francs). However, employers found guilty were not required to compensate the workers against whom they discriminated or to reinstate fired workers. The Ministry of Labor did not report any complaints of such discrimination during the year, although there have been credible press reports of union leader harassment.

On February 8, Yaounde Mobile Brigade gendarmes arrested and detained Benoit Essiga, president of the railroad union and 13 of his colleagues on charges of destruction and dangerous activity. The management of CAMRAIL, the railroad company, accused the union leaders of sabotaging the railway. On February 12, the union members were released; however, on April 23, railroad police re-arrested Essiga and six of his colleagues on charges of attempted murder. CAMRAIL's General Manager had filed a complaint against them, alleging that they planned to kill him. Essiga and his colleagues were later released and were awaiting trial at year's end.

On March 4, Donatien Boyomo, the Sub-Prefect of the West provincial city of Foumban, ordered the arrest and detention of Isaac Youbi, a teacher and teachers' union leader, on charges of grand banditry and disturbance of public order. Youbi spent 12 days in the Foumban Central prison. According to credible reports, the Sub-Prefect ordered Youbi's arrest because the latter refused to resign as union leader. Youbi filed a complaint against the Sub-Prefect, who was fined and sentenced to 6 months in prison. The Sub-Prefect filed an appeal, which was pending at year's end.

There were no developments in the alleged 2002 demotion of an organizer for the Union for Telecommunications Workers.

The CCTU was a member of the Organization of African Trade Unions and the International Confederation of Free Trade Unions. The USLC was a member of the Organization of African Trade Unions. The CGTLC has not yet formed any international affiliations.

b. The Right to Organize and Bargain Collectively

The law provides for collective bargaining between workers and management as well as between labor federations and business associations in each sector of the economy; however, no formal collective bargaining negotiations have taken place since 1996. When labor disputes arose, the Government chose the labor union with which it would negotiate, selectively excluding some labor representatives. Once agreements were negotiated, there was no mechanism to enforce implementation; some agreements between the Government and labor unions were then ignored by the Government.

In February, the Minister of Employment, Labor, and Social Insurance updated the sector-specific collective bargaining agreements with the insurance, pharmaceutical, maritime transportation, and transit and auxiliary transportation sectors. The conventions were negotiated in a meeting between the Minister and various employers' organizations and labor union confederations.

The Labor Code explicitly recognizes workers' right to strike but only after mandatory arbitration. Arbitration decisions legally were not enforceable and could be overturned or simply ignored by the Government. In March 2002, the Minister of Labor met the Labor National Consultative Committee in an attempt to streamline the proceedings for convoking a strike, which requires amending the Labor Code. Results of this meeting have yet to be made public.

The law provides for the protection of workers engaged in legal strikes and prohibits retribution against them; however, these provisions of the law do not apply to civil servants, employees of the penitentiary system, or workers responsible for national security. Instead of strikes, civil servants were required to negotiate grievances directly with the minister of the appropriate department in addition to the Minister of Labor.

There were strikes by workers in various state-owned companies as well as the public service sector during the year. Secondary teachers observed sporadic strikes throughout the academic year, demanding promised salary bonuses. Typically, the Government promised to pay bonuses but then did not follow through on the promise.

Since May 15, workers of the National Agency for Support to Forestry Development (ANAFOR) began a strike, demanding salary payments 7 months in arrears. In November, the strike was suspended following the payment of 2 months' back pay and the appointment of new ANAFOR management. There were no new developments in the August 2002 arrest of Jacques Ngagnang and Clement Casimir Ewondo for attempting to provoke a strike.

Laws exist permitting companies to set up sites that have industrial free trade zone status, but the Government has not granted approval to any firms to do so.

c. Prohibition of Forced or Bonded Labor

The law prohibits forced or bonded labor; however, it occurred in practice. The authorities continued to allow prison inmates to be contracted out to private employers or used as communal labor for municipal public works.

There were isolated reports that slavery continued to be practiced in northern parts of the country (see Section 5). In the South and East Provinces, some Baka (Pygmies), including children, continued to be subjected to unfair and exploitative labor practices by landowners, working on the landowners' farms during harvest seasons without payment (see Section 5).

The Government does not expressly prohibit forced and bonded labor by children; there were reports that these practices occurred (see Section 6.f.).

d. Status of Child Labor Practices and Minimum Age for Employment

The law generally protects children in the fields of labor and education and specifies penalties ranging from fines to imprisonment for infringement; however, child labor remained a problem.

The law sets a minimum age of 14 for child employment, bans night work, and enumerates tasks that cannot be performed legally by children between the ages of 14 and 18 years. These tasks included moving heavy objects, dangerous and unhealthy tasks, working in confined areas, and prostitution. The law also states that a child's workday cannot exceed 8 hours. Employers were required to train children between the ages of 14 and 18, and work contracts must contain a training provision for minors. The prohibition against night work was not enforced effectively.

According to a 2000 study by the ILO and Ministry of Labor, child labor existed chiefly in urban areas and in the informal sector such as street vending, car washing, agricultural work, and domestic service. Many urban street vendors were less than 14 years of age. An increasing number of children worked as household help and some children were involved in prostitution. In the north, there were credible reports that children from needy homes were placed with other families to do household work for pay. In the nation's major cities of Yaounde, Douala, and Bamenda, the ILO estimated in 2000 that 40 percent of employed children were girls, of whom 7 percent were less than 12 years of age, and 60 percent had dropped out of primary school.

In rural areas, many children began work at an early age on family farms. The cocoa industry also employed child laborers. Parents viewed child labor as both a tradition and a rite of passage. Relatives often employed rural youth, especially girls, as domestic helpers.

The Government does not specifically prohibit forced and bonded labor by children, and there were reports that it occurred in practice (see Section 6.f.).

The Ministry of Social Affairs and the Ministry of Labor were responsible for enforcing existing child labor laws through site inspections of registered businesses; however, the lack of resources have inhibited an effective inspection program. Moreover, the legal prohibitions do not include family chores, which in many instances were beyond a child's capacity. During the year, the Government employed 58 general labor inspectors to investigate child labor cases.

During the year, the Minister of Social Affairs raised awareness of child labor through newspaper interviews and seminars. In addition, the Government continued to collaborate with the national and international partners such as UNICEF and the ILO.

e. Acceptable Conditions of Work

Under the law, the Ministry of Labor was responsible for setting a single minimum wage nationally applicable in all sectors. The minimum wage was approximately \$40 (23,514 CFA francs) per month. The wage did not provide for a decent standard of living for an average worker and family.

The law establishes a standard workweek of 40 hours in public and private nonagricultural firms and 48 hours in agricultural and related activities. The law mandates at least 24 consecutive hours of weekly rest.

The Government sets health and safety standards. Ministry of Labor inspectors and occupational health physicians were responsible for monitoring these standards; however, they lacked the resources for a comprehensive inspection program. There was no specific legislation permitting workers to extricate themselves from dangerous work situations without jeopardizing continued employment. Illegal foreign workers were not able to claim legal protections.

f. Trafficking in Persons

The law provides that any person who engages in any form of trafficking in persons shall be punished by 10 to 20 years of imprisonment; however, trafficking remained a problem. The court also may impose a forfeiture penalty on any person who engages in trafficking. The country was a source, transit, and destination point for internationally trafficked persons; trafficking also occurred within the country.

The Ministry of Labor, Employment, and Social Insurance was primarily responsible for fighting trafficking; however, the Ministry was severely underfunded. There were no known cases of prosecution of traffickers or protection of victims by year's end. The Government established an interagency committee to combat trafficking and has developed a program to find and return trafficked children. The Government has not voted a specific budget to combat trafficking, and funding had not been made available by year's end.

Women and children traditionally have faced the greatest risk of trafficking. Most trafficking in children occurred within the country's borders, while most trafficked women were transported out of the country. There have been credible reports of slavery, particularly in the Rey Bouba Division of North Province, inside the closely guarded compound of a local chieftain, where authorities were unable to assert control. Parents sometimes offered their young daughters to the Lamido (chief) of the North Province of the Rey Bouba as gifts.

A 2000 ILO study conducted in Yaounde, Douala, and Bamenda, revealed that trafficking accounted for 84 percent of child laborers (see Section 6.d.). In most cases, intermediaries presented themselves as businessmen, approaching parents with large families or custodians of orphans and promising to assist the child with education or professional training. The intermediary paid parents an average of \$8 (6,000 CFA francs) before transporting the child to a city where the intermediary would subject the child to forced labor with little remuneration. In 4 out of 10 cases, the child was a foreigner transported to the country for labor. The report also indicated that Cameroon was a transit country for regional traffickers as well, transporting children between Nigeria, Benin, Niger, Chad, Togo, the Republic of the Congo, and the Central African Republic for indentured or domestic servitude, farm labor, and sexual exploitation. Citizens also were trafficked to South Africa.

On April 29, the ILO launched an awareness campaign to eradicate child trafficking in airports. Special anti-trafficking embarkation/disembarkation cards were designed and distributed. The cards described the dangers of trafficking and how to recognize the phenomenon.

While there has been no published extensive study on trafficking in adult persons, anecdotal evidence from the NCHRF and others indicates that trafficking primarily in women also existed. Women were "hired" into hubs of prostitution, often in Europe. The method for trafficking women usually involved a marriage proposition by a foreign businessman. The woman was inducted into servitude upon arrival at a foreign destination.

The results of studies on the level of national trafficking and forced labor were still pending at year's end. The Government worked with local and international NGOs to provide temporary shelter and assistance to victims of trafficking. The Catholic Relief Service worked to combat corruption in local schools that led to child prostitution.

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